

complaint is prohibited – see Civ. Code § 3295(e) [“No claim for exemplary damages shall state an amount or amounts.”])

The Court also finds that Plaintiff’s asserted damages are well above those reasonably available to her based on the allegations in the Complaint. There are no facts supporting such a large request for compensatory damages. Even if a meritless notification of a ‘fraudulent’ charge to a credit card company could be considered fraud or defamation, there is no explanation or reasonable basis for determining that Plaintiff was actually damaged by this procedure or that those damages run into the thousands much less tens of thousands of dollars.

The Court also notes that both parties’ CMC statements indicate that they are amenable to ADR of some kind.

Conclusion

The Court finds that this matter is subject to mandatory judicial arbitration in accordance with Code of Civil Procedure section 1411.10 et seq. As such, any determination as to the merits of the case must be decided by the arbitrator. Accordingly, the motion to dismiss is **DENIED** without prejudice.

The Parties are ordered to contact the Court’s ADR Program Office (adrweb@contracosta.courts.ca.gov) to select an arbitrator for this matter and to proceed with judicial arbitration under the Court’s rules.

13. 9:00 AM CASE NUMBER: C25-01838
CASE NAME: HARLEY CONSTANTIN VS. FOTUALLI FANO
***HEARING ON MOTION IN RE: TO STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: CRIST, FRITSCHI & PATERSON,
TENTATIVE RULING:

Before the Court is Defendants Crist, Fritsch, & Paterson, Inc.’s (“CF&P”) and Fotualli Fano’s (“Ms. Fano”) motion to strike. The motion to strike relates to the Complaint for (1) Negligence (as to procurement of Liberty Mutual policy), (2) Negligence (as to procurement of Gemini policy), (3) Negligent Misrepresentation, (4) Unfair Business Practices, and (5) Declaratory Relief filed by Harley Constantin d/b/a Victor Electric (“Plaintiff” or “Mr. Constantin”).

Defendants, pursuant to California Codes of Civil Procedure §§ 435 and 436, move to strike the following portions of Plaintiff’s complaint in this action: (1) the request for restitution of premiums, (2) the request for injunctive relief, (3) the request for attorney’s fees pursuant to the UCL and California Code of Civil Procedure section 1021.5, and (4) the request for declaratory relief. Defendants contend these remedies are improper as a matter of law because premiums were paid to insurers rather than Defendants, precluding restitution; the complaint alleges no pattern or practice supporting injunctive relief; Plaintiff does not qualify for attorney’s fees under the UCL or California Code of Civil Procedure section 1021.5; and Plaintiff has not alleged sufficient facts to establish an actual present controversy warranting declaratory relief.

Plaintiff opposes Defendants’ motion to strike, arguing that restitution, injunctive relief, and attorney’s fees are all properly pled and that striking them at the pleading stage improperly resolves disputed

factual issues; Plaintiff further contends that declaratory relief is appropriate given the ongoing controversy regarding Defendants' duties in procuring insurance and advising of material exclusions.

Defendant's Motion to Strike is **denied in part and granted with leave to amend in part**.

I. Factual Allegations and Background

This suit arises out of a dispute between an independent contractor and his insurance broker.

Harley Constantin ("Mr. Constantin"), who does business as Victor Electric, is a licensed electrical contractor who installs and repairs electrical systems in completed and new residential construction projects. (Complaint ("Compl.") at 7:12-13.) Crist, Fritsch, & Paterson, Inc. ("CF&P") and its agents served as brokers for Victor Electric's commercial general liability ("CGL") insurance for over 25 years. (*Id.* at 7:14-17, fn. 1.) Fotualli Fano ("Ms. Fano") is an agent of CF&P and was Victor Electric's broker during periods relevant to the instant suit. (*Ibid.*)

Plaintiff alleges that CF&P "holds itself out to the public, including through its publicly accessible website (www.cfpinsurance.com) as having specialized expertise in obtaining insurance coverage for licensed contractors..." (Compl. at 5:5-8.) He notes that CF&P on its website includes contractor-specific content related to insurance requirements "including but not limited to, statements of expertise, advice, and warnings..." (*Id.* at 5:9-11.)

A general contractor, K.B. Stone Diamond Corporation, doing business as Diamond Construction ("Stone/Diamond") hired Victor Electric in 2021 to install an electrical system in a new residential construction. (Compl. at 7:19-8:2.) The owners of the property, Robert and Joanne Bradford, subsequently filed suit in Contra Costa County Superior Court in 2023 against Stone/Diamond and others involved in the construction on their property. (*Id.* at 8:3-8.) Plaintiff was served with a cross-complaint in the suit by Stone/Diamond on April 23, 2024. (*Id.* at 8:9-13.)

Plaintiff tendered the defense of the Stone/Diamond cross complaint to Ms. Fano and CF&P, who notified Plaintiff's CGL policy insurer, Liberty Mutual, of the suit. (Compl. at 8:14-17.) On June 5, 2024, Liberty Mutual denied defense of the suit on the grounds that Plaintiff's policy excluded defense for any work on new residential construction. (*Id.* at 8:17-18; 9:1.; Ex. 3)

Plaintiff was unaware of the new residential construction exclusion in his GCL policy. (Compl. at 10:12-13.) Until Plaintiff was served with the Stone/Diamond cross-complaint, he had never before been sued for his work as a licensed electrical contractor. (*Id.* at 9:20-22.)

Plaintiff alleges that CF&P and Ms. Fano knew or should have known that Plaintiff worked on new residential construction and failed to warn him that his policy included the exclusion. (Compl. at 9:23-24.) He alleges that given their knowledge of his work and their expertise, Defendants had a duty to advise him about important exclusions and risks in his policy, yet year after year they renewed his policy and failed to advise him of the gap in his coverage. (*Id.* at 10:3-9, 11-13; 11:6-7.)

Plaintiff regularly contacted CF&P requesting that they provide "Additional Insured" declarations for his

work on new residential construction, as is often required by general contractors to assure them the subcontractor is adequately insured; CF&P routinely issued these declarations. (Compl. at 10:14-20; 11:1-5; e.g. Ex. 4.)

When Mr. Constantin learned of the new residential construction exclusion in his CGL insurance policy with Liberty Mutual, he immediately requested that Ms. Fano and CF&P acquire him a CGL insurance policy that covered him for his work on new residential construction as well as his prior work on new residential construction (with the exception of the Bradford project). (Compl. at 14:18-21.)

Ms. Fano verbally advised Mr. Constantin that a Gemini policy would include the provisions he required, and, based on these representations, Mr. Constantin agreed to purchase the Gemini policy. (Compl. at 15:3-10, 20.)

Plaintiff now alleges that the Gemini policy also excluded coverage for work on certain new residential custom homes. (Compl. at 15:13-14.) The Gemini policy, attached as Exhibit 5 to Plaintiff's complaint, indicates that the policy does not cover new residential construction, and goes on to indicate that custom homes are the exception to the Gemini policy's exclusion on new residential homes. (Compl. Ex. 5.) The policy defines "custom homes" as "'Single-family Home(s)' ... not part of any planned development of 'Single-family Home(s)' or 'Townhome(s)' or any combination of 'Single-family Home(s)' or 'Townhome(s)'." (*Ibid.*)

Plaintiff alleges that he worked on two new custom homes in planned developments while he was covered under the Gemini policy. (Compl. at 16:1-2.) Plaintiff alleges that he is now possibly left exposed to risk because if he is sued for damages or indemnity, Gemini may deny coverage. (*Id.* at 16:3-6.)

As a result of Defendants' conduct, Plaintiff alleges he was injured by the loss of money or property that he paid out in premiums over 25 years for inadequate insurance coverage, as well as costs and attorney's fees incurred in defending a third-party lawsuit that the insurer refused to defend, potential judgment or settlements amounts, and potential liability exposure for uncovered claims. (Compl. at 20:3-8.) Plaintiff seeks restitution of all money wrongfully obtained by Defendants, disgorgement of all ill-gotten gains, an injunction prohibiting Defendant from engaging in similar conduct with other clients, and attorney's fees for the instant suit as well as for defending against the Bradford action. (*Id.* at 20:12-16.) He also seeks declaratory relief on the basis that an actual controversy now exists between Plaintiff and Defendants as to whether Defendants should be responsible for defending and indemnifying Plaintiff in the Bradford action and/or any other suits that may emerge from Plaintiff's work both before the Gemini policy was in place through the date of its cancellation. (*Id.* at 21:20-24; 22:1-2.)

Plaintiff filed the instant suit on June 26, 2025.

The parties must meet and confer in person, by telephone, or by video conference at least five days before the date a motion to strike must be filed. (Code Civ. Proc., § 435.5.) Meet and confer efforts were adequate under the statute. Defendant's motion to strike was filed October 20, 2025.

II. Legal Standard

The Court may, in its discretion and upon a motion to strike by defendant: (a) strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) “Irrelevant matter,” as the term is used in section 436, means “immaterial allegation.” (Code Civ. Proc., § 431.10(c).) California Code of Civil Procedure section 431.10(b) defines “immaterial allegation” as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

III. Analysis

A. Restitution of Premiums, Injunctive Relief, and Declaratory Relief

Plaintiff’s requests for restitution of premiums, injunctive relief, and declaratory relief are related to the fourth cause of action for Unfair Business Practices under California Business and Professions Code section 17200 (“UCL”), and the fifth cause of action for declaratory relief, respectively. Both of these causes of action were sustained with leave to amend in the demurrer that accompanies the instant motion. Accordingly, as a threshold issue, the motion to strike these items is denied as moot.

B. Attorney’s Fees

Defendants seek to strike Plaintiff’s request for attorney’s fees on two bases. Firstly, Defendants contend that Plaintiff is not entitled to attorney’s fees under the UCL as related to third-party suits like the Bradford action, and/or others that might hypothetically emerge out of work Plaintiff performed while he was allegedly underinsured by the Liberty Mutual and Gemini policies. Secondly, Defendants contend that Plaintiff is not entitled to attorney’s fees in the instant suit under California Code of Civil Procedure section 1021.5 on the grounds that this litigation does not confer a significant benefit on the general public or a large class of persons and is, to the contrary, purely unique to Plaintiff’s personal interests. (Def. MTS at 9:21-22.)

i. Attorney’s Fees Under the UCL

Prevailing plaintiffs in a UCL action are limited to injunctive relief and restitution; they may not receive damages or attorney fees because restitution is the only monetary remedy expressly authorized for violation of the UCL. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179; *Kraus v. Trinity Management Services, Inc.* (2000) 23 Cal.4th 116, 128; Bus. & Prof. Code, § 17203.)

Because attorney’s fees are not a permitted form of relief under the UCL, to the extent that Plaintiff seeks to recover attorney’s fees under the UCL related to defending the underlying Bradford/Stone lawsuit (Compl. at 20:3-7; 21:13-14.), the motion to strike that request is granted with leave to amend.

ii. Attorney's Fees Under California Code of Civil Procedure § 1021.5

Absent an express or implied agreement between the parties or a statute that specifically provides for them, parties are responsible for their own attorney's fees. (Code Civ. Proc., § 1021.) A court may award attorney's fee to a successful party upon motion "in any action which has resulted in the enforcement of an important right affecting the public interest" if:

- (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons,
- (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and
- (c) such fees should not in the interest of justice be paid out of the recovery, if any.

(Code Civ. Proc., § 1021.5.)

"There is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533; see also: *Snatchko v. Westfield LLC*, (2010) 187 Cal. App.4th 469, 497.)

Because there is no requirement that the basis for a fee award be specified in the pleadings, the propriety of any such award under section 1021.5 is a matter to be determined by the Court on motion after judgment, not at the pleading stage. (*Snatchko, supra*, 187 Cal. App.4th at 497.) Accordingly, to the extent that Plaintiff seeks attorney's fees under section 1021.5, the motion to strike is denied.

IV. Conclusion

For the foregoing reasons, Defendants' motion to strike is **DENIED IN PART and GRANTED IN PART**. The motion to strike is denied as moot as to the requests for restitution of premiums, injunctive relief, and declaratory relief; denied as to the request for attorney's fees under California Code of Civil Procedure section 1021.5; and granted as to the request for attorney's fees under the UCL.

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TENTATIVE RULING:

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